SCHOOL OF LAW
Faculty of Arts

MACQUARIE University

Topic 5: Relation between National and International Law and Jurisdiction

LAWS2000/8015 International Law

1. *Dualism and monism are theories used to explain the interaction between international and national law. Explain the differences between the two theories. Which one best reflects Australia's approach to international law?*

2. *What are the three basic forms of jurisdiction?*

3. *What is universal jurisdiction?*

4. *Group work: Resolve a few brief hypotheticals and apply the relevant grounds for asserting jurisdiction.*

   a. **Miss Shorttempered, a Greek national and resident of Greece, sends a bottle of poisoned olive oil to Mr. Tindercrush, a UK national living in London. The poisoned olive oil causes Mr. Tindercrush's death. Which country exercises jurisdiction?**

   b. **Mr. Brawel, an Australian national, seriously injures two American nationals while they are vacationing in Bali. Which country can exercise jurisdiction and why?**

   c. **A national of State A is a member of the terrorist organisation, XWZ, which ruled over an area of State A where he and other members of XWZ tortured civilians, carried out extrajudicial killings, and systematically persecuted members of religious minorities. After losing control over the area to another group, this XWZ member flees to Germany under a false name and seeks refugee protection. However, German investigators uncover his identity and allege that his crimes amount to crimes against humanity and violations of the prohibition of torture. Can Germany exercise jurisdiction, even though the crimes were not planned or carried out on its territory and do not concern one of its nationals? Why?**

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